U.S. Bank Freight Payment Service For Carriers

Application & Agreement Checklist

In order to enroll in the U.S. Bank Freight Payment Service Program for payment of Carrier invoices, please read and complete the attached U.S. Bank Freight Payment Service for Carriers Application & Agreement. Follow the instructions immediately below to submit your completed Carrier Application to U.S. Bank

☐ Carrier Application (the "**Carrier Application**"), page 2-4. All required fields are marked in red.

- Complete Section 1, Company Information.
- Complete Section 2, Automated Payment and Banking Information.
- Complete Section 3, Administrator and End Users.
- Complete Section 4, Transaction Data Submission.
- Agreement, pages 5-14: Read carefully and retain a copy for your records.

☐ Sign the Agreement, page 12.

☐ Submit the Carrier Application & Agreement.

Send completed Carrier Applications to U.S. Bank by any of the following methods:

- Scan and send by email to U.S. Bank at **CPSselleragreement@usbank.com**; or
- Scan and send by email to your Sales Manager; or
- Print and send by U.S. mail to U.S. Bank, Set-Up Team, 200 So. Sixth Street, EP-MN-L26C, Minneapolis, MN 55347
- U.S. Bank recommends that any sensitive information be sent by a more secure manner than via unsecure email, including secure email with encryption, uploads to secure file share sites, U.S. Mail, and express courier.

Questions?

For more information, or if you have questions about U.S. Bank Freight Payment, please contact your Sales Manager.

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U.S. Bank Freight Payment Service For Carriers
Application

Section 1 Company Information.

- ○ I am a US carrier
- ○ I am an EU carrier
- ○ Other

Legal Company Name of Carrier (as shown on tax returns or formation documents) | Federal Tax ID

Doing Business As ("**DBA**"), if applicable. Please list all DBAs.

Standard Carrier Alpha Code (SCAC) assigned by National Motor Freight Traffic Association, Inc.

U.S. Department of Transportation (USDOT) Number

Business Type: ☐ Corporation ☐ Partnership ☐ Sole Proprietor ☐ Other:

If "LLC" select "Other" and write "LLC" above

Corporate Address of Carrier NOTE: P.O. Boxes cannot be accepted; please insert physical address.

Corporate Address (Corporate Address: Street Number, Street, City, State, and Zip Code)

Country

Attention | Phone Number (to contact Carrier regarding processing of this application) | Fax Number

Email Address for Welcome email

Email Address for Welcome email

Attention | Phone Number | Fax Number

Section 2 Automated Payment and Banking Information.

Carrier authorizes U.S. Bank to make payment to Carrier on behalf of Shippers by Automated Clearing House ("ACH") to the account(s) set forth below, and agrees to be bound by the National Automated Clearinghouse Association ("NACHA") Rules at https://www.nacha.org/. This authorization remains in effect as long as the Agreement is in effect or until revoked by Carrier. U.S. Bank may terminate this Agreement if this ACH authorization is terminated. Carrier may change its account information at any time by providing U.S. Bank with a revised ACH form signed by Carrier's duly authorized representative.

Carrier authorizes U.S. Bank to debit Carrier's account(s) in the event of an overpayment or error in the amount of the overpayment or error, or to draw fees not otherwise deducted from any payment made to Carrier. Such debits will occur within five business days of the settlement date or upon discovery of the overpayment or error.

Complete the sections below as applicable for payments in European currency, U.S. and Canadian Dollars. For Carriers to be eligible for payment in Canadian Dollars, Carrier and Shipper must have contracted for Canadian payment.

U.S. Dollars. U.S. Bank will make payment in U.S. Dollars to the following remittance account of Carrier in accordance with the Agreement.

◉ Complete this section if you have a **European Account – AT A BANK IN EUROPE.**

IBAN Number

Account Number | Name on Account

Name of the Bank | Bank's BIC (SWIFT) Address

Address of Bank | City | Country | Zip/Postal Code

○ Complete this section if you have a **U.S. Dollar Account – AT A BANK IN THE UNITED STATES.**

ABA Routing Number

Account Number | Name on Account

Name of the Bank in the United States | Bank Phone

Address of Bank in the United States | City | State | Zip Code

○ Complete this section if you have a **U.S. Dollar Account – at a BANK IN CANADA.**

Transit Number and Banking Number

Account Number | Name on Account

Name of the Bank in Canada | Bank Phone

Address of Bank in Canada | City | Province | Postal Code

Canadian Dollars. U.S. Bank will make payment in Canadian Dollars to the following Remittance Account of Carrier in accordance with the Agreement.

○ Complete this section if you have a **Canadian Dollar Account at a BANK IN CANADA.**

Transit Number and Banking Number

Account Number | Name on Account

Name of the Bank in Canada | Bank Phone

Address of Bank in Canada | City | Province | Postal Code

Individuals authorized to change Section 2 Automated Payment and Banking Information.

NAME	TITLE	PHONE	EMAIL

Section 3 Administrator & End Users.

Carrier designates the following Administrator and End Users.

Name of Administrator

Address of Administrator

Telephone Number of Administrator

Email Address of Administrator

END USER	TITLE	PHONE	E-MAIL

Section 4 Transaction Data Submission.

Carrier will submit Transaction Data to the Platform by the following method.

- ○ Enter invoices via the U.S. Bank Freight Payment web site.
- ○ Send invoices via Electronic Data Interchange (EDI).
  *Provide contact information below if this is selected.
- ○ Submit a Comma-Separated Values (CSV) file.

EDI contact information:

Name

Email

Phone

Address

City

State

Country

U.S. Bank Freight Payment Service For Carriers

Agreement

This U.S. Bank Freight Payment Service for Carriers Agreement (the "Agreement") is between the entity signing the U.S. Bank Freight Payment Service for Carriers Application as "Carrier" and U.S. Bank National Association ("U.S. Bank"). If U.S. Bank approves Carrier's Application, this Agreement shall become effective as of the date signed by Carrier (the "Effective Date").

1. **DEFINITIONS:** "**Accelerated Payment**" means U.S. Bank's prompt initiation of a payment to Carrier on behalf of a Shipper on an invoice under a Shipper/Carrier Agreement after U.S. Bank's receipt of the Shipper's approval to pay such invoice. "**Administrator**" means a Carrier employee designated by Carrier to administer the Program. "**Documentation**" means the documentation provided to Carrier by U.S. Bank including, but not limited to, electronic and hard copy versions of manuals, instructions, policies, procedures, specifications, product standards, and guidelines for accessing and using the Platform, instructions for electronic debits and credits to account(s), reports, and information and display screens. "**End User**" means each individual issued End User Credentials by Administrator. "**End User Credentials**" means the electronic identity assigned to each End User permitting access to and use of the Platform, and functions as the End User's electronic signature in the Platform. "**Identification Information**" means legal names, physical street addresses, taxpayer identification or business numbers, dates of births or other information or documentation. "**Intellectual Property**" means any patent rights, inventions, design rights, copyrights, database rights, trade secrets, trade names, trademarks, service marks, moral rights, know-how and any other similar rights or intangible assets recognized under any laws or international conventions, and in any country or jurisdiction in the world, as intellectual creations to which rights of ownership accrue, and all registrations, applications, disclosures, renewals, extensions, continuations or reissues of the foregoing now or hereafter in force. "**Platform**" means any online platform that is owned or licensed by U.S. Bank and through which parties may submit and process Transaction Data that will serve as the basis for U.S. Bank to make approved payments on behalf of Shippers. "**Shipper**" means any entity that has entered into a Shipper/Carrier Agreement with Carrier for transportation services. "**Shipper/Carrier Agreement**" means the agreement between Shipper and a Carrier regarding the provision of transportation services. "**Transaction Data**" means data and information regarding the provision of goods and/or services under a Shipper/ Carrier Agreement.

2. **SERVICES GENERALLY**. U.S. Bank operates a Freight Payment Program (the "**Program**") consisting of (i) providing enhanced services and functionality on the Platform and (ii) facilitating payments from Shippers to Carriers with Accelerated Payment. Carrier agrees to participate in the Program and U.S. Bank agrees to allow Carrier to participate in the Program, all in accordance with the terms contained herein.

3. **PLATFORM ACCESS.** Subject to the limitations set forth in Section 8, U.S. Bank shall provide Carrier access to the Platform to review and submit Transaction Data. Carrier agrees to U.S. Bank's use of Transaction Data submitted by Carrier through the Platform to provide reconciliation services to the Shipper associated with such Transaction Data. Carrier's access to the Platform is conditioned upon Carrier's adherence to the Documentation, which may be amended and modified from time to time. At all times Carrier shall designate at least one Administrator to manage the Program. The Administrator shall be Carrier's primary point of contact for U.S. Bank and shall be responsible for issuing End User Credentials. U.S. Bank shall be entitled to rely without further investigation on the directions provided by an Administrator or any party identified by an Administrator as having the authority to provide directions related to the Program.

4. **PAYMENTS.**

   4.1 Payment of Fees. In exchange for participating in the Program, Carrier agrees to pay U.S. Bank for its own account, the fees set forth in Schedule 1 (the "**Program Fees**") for each Accelerated Payment. Carrier acknowledges and agrees that the Program Fees will be deducted by U.S. Bank from the invoiced amounts otherwise payable from Shipper to Carrier. Carrier understands and agrees that (i) the timing of Accelerated Payments is dependent upon factors outside of U.S. Bank's control and that the Program Fees related to such Accelerated Payments are due notwithstanding any such factors outside of U.S. Bank's control, and (ii) Carrier's failure to receive Accelerated Payments in one or more instances does not relieve Carrier of its payment obligations for the Program Fees for any other Accelerated Payment.

4.2 Processing. Carrier shall provide U.S. Bank, and U.S. Bank may rely and act upon payment information, instructions and Transaction Data that will enable U.S. Bank to make on behalf of Shippers approved payments to Carrier. Shippers may also provide, or may have provided, U.S. Bank with payment information regarding Carrier. Carrier agrees that U.S. Bank may rely and act upon such payment information from Shippers and any additional or modified payment information that may be provided by Carrier. Carrier shall be solely responsible for verifying the accuracy of Transaction Data whether it is provided by Carrier or Shipper. Carrier shall be solely responsible for the security of End User Credentials. Carrier shall be solely responsible for the care, security, use, and retention of Transaction Data.

4.3 Disclaimer. U.S. Bank's obligations are limited to processing of Transaction Data and the remittance of approved payments on behalf of Shippers, and may be subject to applicable limitations under applicable law, rule or regulation. U.S. Bank is not liable for damages, expenses, delays, misdirected payments, or any other claim or liability for making payments in accordance with payment information, instructions or Transaction Data, nor is U.S. Bank liable for delays in payment that may result from outdated payment information or for Carrier's failure to provide timely or accurate payment information, instructions or Transaction Data. In the event of a conflict in payment information U.S. Bank will rely on payment information provided by Shipper, and Carrier shall hold U.S. Bank harmless from any damages it may incur as a result of such reliance by U.S. Bank.

5. SECURITY AND CONFIDENTIALITY.

5.1 Security. "**Secured Information**" means information regarding accounts, passwords, personal identification numbers, End User Credentials, and other sensitive information of either party.

(a) Either party may receive or otherwise have access to Secured Information and shall implement or maintain an information security program designed to (i) ensure the security, integrity and confidentiality of Secured Information; (ii) protect against any anticipated threats or hazards to the security or integrity of such Secured Information; (iii) protect against unauthorized access to or use of such Secured Information that could result in substantial harm to the person or entity that is the subject of the Secured Information; and (iv) ensure the proper disposal of such Secured Information.

(b) U.S. Bank will maintain physical, electronic, and procedural safeguards designed to (i) maintain the security and confidentiality of Identification Information; (ii) protect Identification Information against anticipated threats or hazards to the security or integrity of Identification Information; and (iii) prevent unauthorized access to or use of such Identification Information that could result in substantial harm or inconvenience to Carrier.

(c) Carrier will safeguard Secured Information provided by U.S. Bank in a manner that is no less stringent than those applicable to Carrier's own proprietary information.

(d) At a minimum, Carrier will install and maintain commercially reasonable cybersecurity defenses against any feature, routine, or device that is intended or designed to (i) disrupt the operation of any U.S. Bank owned or licensed software or system; (ii) cause any U.S. Bank owned or licensed materials, software, or system to be destroyed, altered, erased, damaged or otherwise made inoperable; or (iii) permit any person or entity to destroy, alter, erase, damage or otherwise render inoperable any U.S. Bank owned or licensed materials, software, or system, including, but not limited to, any cyber-attacks such as any computer virus, trap door, back door, time bomb, malicious program or mechanism such as a software lock or routine for password checking, central processing unit serial number checking or time dependency.

5.2 Confidentiality.

(a) Confidential Information. Each party may have access to and each party may provide to the other party information that the owner of such information regards as confidential or proprietary. "Confidential Information" includes information of a commercial, proprietary or technical nature whether now in existence or hereafter created and includes, but is not limited to, the following: (i) information marked as "confidential" or similarly marked, or information that a party should, in the exercise of reasonable judgment, recognize as confidential; (ii) Intellectual Property of each party; (iii) Identification Information; (iv) the business, financial or technical information of each party and its respective affiliates; (v) each party's objectives, materials, results, technological developments and other similar proprietary information and materials; and (vi) notes, memoranda, analyses, compilations, studies and other documents, whether prepared by either party or for either party, which contain or otherwise reflect Confidential Information.

(b) Exceptions. Confidential Information does not include information that (i) is already rightfully known to the receiving party at the time it obtains Confidential Information from the disclosing party; (ii) is or becomes generally available to the public other than as a result of disclosure in breach of this Agreement or any other confidentiality obligations between the parties; (iii) is received on a non-confidential basis from a third party reasonably believed to be authorized to disclose such information without restriction and without breach of this Agreement; (iv) is contained in, or is capable of being discovered through examination of, publicly available records or materials; or (v) is developed by U.S. Bank or Carrier without the use of any proprietary, non-public information provided by the other party.

(c) Restriction and Care. Each party shall hold Confidential Information in confidence and disclose Confidential Information only to those employees or agents whose duties reasonably require access to such Confidential Information. Each party must protect Confidential Information using at least the same degree of care it uses to protect its own Confidential Information, but in no event, less than a reasonable degree of care to prevent unauthorized disclosure or duplication (except as required for backup systems) of such Confidential Information. Each party shall cause its agents and employees to hold and maintain Confidential Information in confidence, and shall only use and disclose such Confidential Information for the purpose of performing its obligations, exercising its rights, or enforcing its rights under this Agreement, or as otherwise expressly permitted by this Agreement.

(d) Disposition of Confidential Information. Upon termination of this Agreement, each party shall immediately, upon election by the disclosing party, return or destroy all Confidential Information in its direct or indirect possession or control that is the property of the disclosing party. Upon written request, the recipient will provide the disclosing party written certification of destruction of any Confidential Information. Notwithstanding, U.S. Bank may retain one copy of Confidential Information for archival purposes in accordance with applicable law, rule or regulation. The receiving party shall return any Confidential Information maintained in an electronic format to the disclosing party in an industry standard format or, at the option of the owner, deleted and removed from all computers, electronic databases, and any other media.

(e) Compelled Disclosure. Each party shall promptly provide to the disclosing party notice of any order by a court or governmental agency to disclose any Confidential Information, so the disclosing party may seek an appropriate protective order. U.S. Bank may be prohibited by a governmental agency or court rule or order from disclosing the request for Confidential Information, and under such circumstances U.S. Bank will not notify Carrier of any disclosure of Confidential Information thereunder. Each party shall disclose Confidential Information only to the extent required by applicable law.

(f) Non-Publicity. Carrier shall not make any case study, testimonial, press release, or other public announcement regarding this Agreement or any activities performed hereunder. Carrier and its affiliates shall obtain the prior written approval of U.S. Bank's Media Relations department for any press release that Carrier seeks to release that contains U.S. Bank's identity. U.S. Bank shall have at least 15 business days to review and respond to any such request for approval.

6. DEFAULT.

6.1 Event of Default. Carrier shall be in default for (i) any violation of its obligations set forth in section 5 (Security and Confidentiality) and section 8 (Intellectual Property); (ii) revocation of its authorization for, or non-payment of, fees or for any failure to have funds available for any payment due to U.S. Bank; (iii) any default of any other agreement between the parties or their affiliates that has not been cured in the time specified in the applicable agreement; (iv) any representations or warranties that fail to be true and correct at any times during this Agreement or (v) any violation of any other covenants, conditions, or provisions set forth in this Agreement (each an "**Event of Default**").

6.2 Cure. Carrier shall cure any Event of Default under section 6.1.(i)-(ii) within five days of notice of an Event of Default. Carrier shall cure any Event of Default occurring under section 6.1(iii)-(iv) within ten days of notice of an Event of Default. Carrier shall cure any Event of Default under section 6.1(v) within 30 days of notice of an Event of Default. If any such cure reasonably requires more than the allotted time, U.S. Bank and Carrier may agree on an alternative plan to cure. Carrier shall cure in accordance with such a plan agreed upon by U.S. Bank and Carrier.

6.3 Remedies. In an Event of Default (after the notice and cure period), in addition to any other remedies at equity or law, U.S. Bank may: (i) immediately cease making Accelerated Payments or immediately suspend the Program; (ii) immediately terminate this Agreement; (iii) accelerate and demand immediate reimbursement, and Carrier shall comply with such demand, of any payables owed by Carrier; and (iv) collect on demand, and Carrier shall promptly comply with such demand any amount directly or indirectly related to any Event of Default, including any fees or losses sustained by U.S. Bank, and any reasonable court and legal costs incurred by U.S. Bank to exercise its rights or remedies under this section 6. For the purposes of any Event of Default under section 6.1.(ii), the due date on the applicable statement will constitute notice of Event of Default. If Carrier violates its obligations under section 5 (Security and Confidentiality) or section 8 (Intellectual Property), in the addition to the foregoing, U.S. Bank shall be entitled to injunctive relief in its favor and to specific performance without proof of actual damages and without the requirement of the posting of any bond or similar security because U.S. Bank's remedies at law may be inadequate to protect U.S. Bank against immediate and irreparable harm caused by any anticipated or actual breach of Carrier's obligations as set forth in section 5 (Security and Confidentiality) or section 8 (Intellectual Property) and because damages resulting from such a breach may be difficult to ascertain.

7. TERM, TERMINATION AND SUSPENSION. This Agreement will remain in effect for five years from the Effective Date (the "**Term**") unless terminated by mutual agreement of the parties upon 60 days prior written notice. This Agreement will automatically extend at the end of the Term for successive one year periods unless either party provides 60 days written notice of termination prior to expiration of the current one year period.

7.1 Either party may terminate this Agreement immediately by written notice to the other party upon any of the following events: (i) dissolution or liquidation of the other party or the other party's parent; or (ii) insolvency of, the filing of a bankruptcy or insolvency proceeding with respect to, or the appointment of an examiner, receiver, or trustee for benefit of creditors of the other party or parent thereof, or the entering by the other party into any other similar proceeding or arrangement for the general benefit of its creditors.

7.2 U.S. Bank may terminate this Agreement upon 10 days prior written notice to Carrier upon any of the following events: (i) Carrier's merger, amalgamation, sale, or transfer of all or substantially all of its assets that causes a material change to Carrier's business or financial condition; or (ii) U.S. Bank's determination the overall relationship is unprofitable.

7.3 U.S. Bank may immediately suspend or terminate this Agreement, in whole or in part, upon Carrier's failure to comply with section 17 of this Agreement (Compliance with Applicable Statutes and Regulations); or if U.S. Bank, in its sole discretion, determines provision of services under this Agreement is counter to any existing, new or amended law, regulation, code, regulatory guidance, regulatory interpretation, anticipated regulatory interpretation, or any enforcement of existing, new, or amended law, regulation, code, regulatory guidance regulatory interpretation, or anticipated regulatory interpretation.

7.4 U.S. Bank may terminate this Agreement immediately upon written notice to Carrier if there have been no payments made to Carrier by U.S. Bank on behalf of Shippers under this Agreement within 12 months of the Effective Date of this Agreement or for any consecutive 12 month period after the Effective Date of the Agreement.

7.5 Upon termination of this Agreement Carrier shall immediately return or destroy, as directed by U.S. Bank, all copies of any Program materials including but not limited to the Documentation. Carrier shall promptly certify its compliance with this provision upon the destruction of such Program materials.

7.6 The following provisions shall survive termination of this Agreement: Schedule 1 (Fees and Billing); section 5 (Security and Confidentiality); section 6 (Default); section 8 (Intellectual Property); section 10 (Disclaimer, Release and Limitation of Liability); section 11 (Disputes and Indemnification); section 14 (Notices); section 16 (Governing Law); section 29 (Cumulative Remedies); and section 30 (Jury Trial Waiver). Without limiting or affecting the foregoing, any provision of the Agreement that expressly or by implication is intended to come into or continue in force on or after termination of this Agreement shall survive termination and shall remain in full force and effect.

8. INTELLECTUAL PROPERTY.

8.1 Generally. U.S. Bank or its affiliates are the owner or licensee of any and all Intellectual Property associated with U.S. Bank products and services including, but not limited to, the Program, documentation related materials, and derivatives. Except as expressly stated in this Agreement, copying, redistribution, publication, use, or retransmission of any portion of the foregoing is strictly prohibited without the express written consent of U.S. Bank. Carrier shall not change or delete any proprietary notices. Nothing in this provision grants any ownership right to Carrier, and U.S. Bank remains the sole owner of any and all its Intellectual Property.

8.2 Software License.

(a) Grant. U.S. Bank grants to Carrier a limited, revocable, non-assignable, non-exclusive, non-sublicensable license to use the Platform for the Services. Carrier is fully responsible for all configuration selections made in the Platform by or on behalf of Carrier.

(b) Ownership. U.S. Bank, its affiliates, or their respective third party licensors, retain all rights, title, and ownership of the Program (which for the purpose of this section 8, includes the Platform), any documentation provided to Carrier or its End Users, and any works derived from the Program, or its third party licensors' Intellectual Property. The Program is protected by copyright and may be protected by patent, trademark, or other proprietary rights and laws of the United States, Canada or other jurisdictions. Any rights not granted in this section are reserved by U.S. Bank or its third party licensors.

(c) Updates. U.S. Bank or its third party licensors may, from time to time, provide updates to a Platform. The updates replace the Platform initially licensed to Carrier, and do not constitute an additional license to use the Platform.

(d) Restrictions. Carrier may not attempt to gain unauthorized access to any portion or feature of the Program, or any other systems or networks connected to the Program. Carrier agrees not to undertake any actions which would result in any interference with the proper working of the Program or any transactions conducted on the Program. Carrier may not use the Program for any purpose which is unlawful or prohibited by this Agreement. Carrier may not (i) reverse engineer, decompile, or disassemble the Program or bypass

or disable any copy protection or encryption; (ii) reformat or make derivative works of the Program; (iii) transmit all or any part of the Program by any means, media, or manner that would present the risk of unauthorized access; (iv) disclose part or all of the Program to any third parties, except as explicitly authorized herein or in writing by U.S. Bank; (v) use all or part of the Program to advise, consult, or otherwise assist any third parties; or (vi) otherwise use the Program in any manner that would compete in any way with U.S. Bank's business.

8.3 **Audit.** Carrier agrees to permit U.S. Bank reasonable access to any records, systems, or operations to ensure that Carrier is in compliance with the license granted in this section.

8.4 **Use of Name and Marks.** U.S. Bank may use Carrier's name or marks in presentations, business cases, and product brochures. All publications that do more than simply identify Carrier must be reviewed and approved, in writing, by Carrier before release.

9. WARRANTIES. Each party respectively represents and warrants, at all times during the Agreement, that (i) execution of the Agreement and the performance of the obligations hereunder are within such party's powers; have been authorized by all necessary action within the scope of the normal course of business; do not require action by or approval of any governmental or regulatory body, agency or official, or if required, such approval has been obtained; (ii) execution of this Agreement and the performance of the obligations will not cause a material breach of any duty arising in law or equity; (iii) each party possesses the financial capacity to perform all of its obligations under this Agreement; and (iv) each party shall comply with all applicable laws, rules, regulations and requirements of governmental authorities related to the Program. Carrier represents and warrants, at all times during the Agreement, that (i) the material information provided by Carrier is true, complete and accurate; (ii) no third party consent, including, without limitation, a lender's consent, is required with respect to the execution of this Agreement, or if any such third party consent or approval is required, Carrier has obtained any and all such consents or approvals; and (iii) Carrier will not, in connection with the services contemplated by this Agreement or in connection with any other business transactions involving U.S. Bank, receive compensation, make, offer or promise to make any payment or transfer anything of value, directly or indirectly if such compensation, payment or transfer would have the purpose or effect of public or commercial bribery, acceptance of or acquiescence in extortion, kickbacks or other unlawful or improper means of obtaining business, in breach of any applicable laws, statutes, regulations and codes relating to anti-kickback, anti-bribery and anti-corruption. The foregoing sentence shall not, however, prohibit normal and customary business entertainment of nominal value or the giving of business mementos of nominal value.

10. DISCLAIMER, RELEASE AND LIMITATION OF LIABILITY. Except for any warranties explicitly set forth in this Agreement (if any), U.S. Bank hereby disclaims all warranties, express or implied, including warranties of merchantability for fitness for a particular purpose either to Carrier or to any other party, in connection with this Agreement or with respect to the Platform, the Documentation or software products provided or made available by U.S. Bank to Carrier for use in connection with this Agreement. Other than those rights and remedies expressly provided to Carrier by U.S. Bank in this Agreement, Carrier individually and collectively waives and releases U.S. Bank and all of its agents, to the maximum extent permitted by law, from any liabilities, rights, claims, and remedies, whether express or implied, and whether arising by law or otherwise, due to any defects, errors, malfunctions or inadequacies of, inability to access or use, or misuse of, or third-party interference with, the Platform or the Documentation. **Other than the mandatory law in each case applicable, U.S. Bank and its affiliates are not liable for any consequential, special, indirect, or punitive damages of any nature (including lost profits) regardless of whether such party has been advised of the possibility of such damages. U.S. Bank is not liable for any damages under the Program except for damages related to the warranties expressly stated herein.**

U.S. Bank provides one or more methods for Carrier to securely transmit Transaction Data to U.S. Bank. Transaction Data transmitted by unsecured electronic communication may be intercepted by third parties. Incorrect Transaction Data submitted to U.S. Bank may result in errors or other problems in Carrier's business systems. Carrier, for itself, its representatives, its related parties and their respective successors, assigns, subsidiaries and affiliates, hereby releases U.S. Bank and its affiliates and all of their respective employees, agents and representatives from any and all liability or claim of any type arising out of or in connection with: (i) the transmission of Transaction Data via unsecured electronic communications; or (ii) the transmission of inaccurate Transaction Data.

11. DISPUTES AND INDEMNIFICATION.

11.1 **Disputes.** All disputes and claims concerning disposition, condition, or provision of goods or services and costs under a Shipper/Carrier Agreement including payment requests will be resolved between Shipper and Carrier, as applicable. U.S. Bank has no liability or responsibility for the provision of goods or services between Shipper and Carrier, or any related disputes or claims including, but not limited to, fraudulent acts, omissions, damage to goods, loss of goods, or non-performance of services under a Shipper/Carrier Agreement.

11.2 **U.S. Bank Indemnification.** U.S. Bank will indemnify and hold Carrier harmless from and against all liability,

damages, losses, costs, expenses (including reasonable attorney and legal fees and expenses) based upon or arising from a third party claim that the Platform licensed to Carrier or any service used by Carrier pursuant to this Agreement infringes a third party's copyright, trademark or U.S. patent existing as of the date of delivery of such Platform or service to Carrier, or misappropriates a third-party's trade secrets.

11.3 Carrier Indemnification. Carrier will indemnify and hold U.S. Bank, its agents, officers, directors, employees, and contractors harmless from and against all liability, claims, damages, losses, costs, expenses (including reasonable attorney and legal fees and expenses) based upon or arising from: (i) any negligent acts or omissions, fraud or willful misconduct of Carrier or its Administrator, End Users or other representatives; (ii) any breach of the terms of this Agreement, by Carrier or its Administrator, End Users or other representatives; (iii) the inaccuracy of documents, Transaction Data, billing, payment, confirmation, or collection information provided by (or on behalf of) Carrier or any representative of the same, including, but not limited to, information provided to U.S. Bank on any attached schedules, exhibits, addenda, or input into the Platform; (iv) any dispute between Carrier and Shipper, or Carrier and any factor, or any respective representatives of the same; or (v) Carrier's, its affiliates or its representatives' failure to comply with applicable law, rule or regulation.

11.4 Indemnification Procedures. An indemnified party shall notify the indemnifying party of any claim that is asserted and each action or suit that is filed or served, and provide the indemnifying party with a copy of any written documentation received in relation with the claim, for which the indemnified party is seeking indemnification pursuant to this section 11, provided, however, that the failure to give such notice shall not relieve the indemnifying Party of its indemnification obligations except to the extent it is actually damaged. The indemnifying party may thereafter assume control of such claim, provided that the indemnified party shall have the right to participate in the defense or settlement of such claim. The indemnified party may employ counsel at its own expense to assist with any such claim; however, if such counsel is necessary because of a conflict of interest or because the indemnifying party does not assume control, the indemnifying party shall bear the expense of such counsel. The indemnifying party may not settle any claim, admit to any liability, or consent to any judgment with respect thereto without the consent of the indemnified party (which consent may not be unreasonably withheld, delayed or rejected). The indemnifying party is not obligated to indemnify and defend the indemnified party with respect to a claim (or portions of a claim) if the indemnified party (i) fails to promptly notify the indemnifying party of the claim and fails to provide reasonable cooperation to defend or settle the claim; and (ii) if, and only to the extent that, the failure materially prejudices the indemnifying party's ability to satisfactorily defend or settle the claim.

12. PROGRAM GOVERNANCE. The provisions of the Uniform Commercial Code do not apply to this Agreement. The Program is governed by the terms of this Agreement only. U.S. Bank is not a party to any Shipper/Carrier Agreement and U.S. Bank does not determine the rights, responsibilities, or remedies regarding the underlying shipping or other transaction, or the offer, acceptance, passing of title, examination of goods, or any other matters related to the sale or lease of goods or services.

13. TAXES. U.S. Bank: (i) does not issue invoices on behalf of Carrier to Shipper, (ii) is not responsible for calculating value added tax, retail sales tax, withholding or other taxes associated with a payment request, and (iii) is not responsible for collecting or reporting taxes owed to any party or authority associated with a payment request. Carrier shall calculate and pay all taxes, duties, levies, tariffs or similar charges of any kind (including withholding or value added taxes) imposed by any federal, state, local, or other governmental entity associated with any payment processed under this Agreement for products or services provided between Carrier and Shipper, except, however, Carrier will not pay taxes based on U.S. Bank's income. Carrier shall hold U.S. Bank harmless from all claims arising from any failure by any entity to support or pay any such taxes, including duties, levies, tariffs or similar charges.

14. NOTICES. Any notice required to be given to a party pursuant to this Agreement shall be in writing and will be deemed received either (i) two days after the date of mailing if sent by overnight, registered, or certified mail, return receipt requested, or (ii) one day after the date of mailing if sent by a national overnight courier service. Notices shall be sent to the following addresses: to **U.S. Bank at U.S. Bank EP-MN-A17S, 901 Marquette Avenue, Minneapolis, MN 55402, Attn: Contract Services** and to Carrier at the address stated on the Application. Either party may change its notification address at any time by written notice to the other.

15. ASSIGNMENT, TRANSFER. Carrier shall not assign or otherwise transfer or delegate its rights, obligations, or duties under this Agreement without U.S. Bank's prior written approval at its sole discretion. For the purposes of this provision, "transfer" refers to a merger, acquisition, consolidation, divestiture, change in control, asset transfer, amalgamation, proceeding under bankruptcy laws, or any other transfer, reorganization, or sale (in whole or in part) of Carrier. To the fullest extent not prohibited by applicable law, Carrier will notify U.S. Bank in advance of any material change (and if prohibited, within 15 days after such change) to any information provided to U.S. Bank at any time in contemplation or in furtherance of this Agreement, including, without limitation, Carrier's primary business, legal

organization (e.g., partnership, corporation, etc.) or any change resulting from a transfer as described above. Carrier shall promptly provide any information requested by U.S. Bank associated with the request for approval. In conjunction with Carrier's request for U.S. Bank's written approval, Carrier will pay U.S. Bank a fee in the amount of $1,000.00 in consideration of U.S. Bank's review of changes under this section 15. If U.S. Bank determines, in its sole discretion, its burden (including but not limited to actual costs) associated with the review exceeds $1,000.00, Carrier agrees that it will reimburse U.S. Bank for the additional amount identified by U.S. Bank, without regard to whether U.S. Bank provides its approval.

16. **GOVERNING LAW AND VENUE.** The laws of the state of Minnesota and applicable federal laws and regulations of the United States apply to any dispute arising out of this Agreement, its subject matter, or its formation. Any dispute or claim arising out of or related to this Agreement must be brought before a state or federal court located in the city of Minneapolis, Minnesota.

17. **COMPLIANCE WITH APPLICABLE STATUTES AND REGULATIONS.** The parties will maintain compliance with U.S. Bank policy and all statutes, regulations, economic sanctions laws, anti-money laundering laws, and trade restrictions imposed by the United States, United Nations, European Union or Canada applicable to the products and services contemplated under this Agreement. U.S. Bank may require Identification Information for Carrier, its affiliates, and any authorized signers, beneficial owners, End Users or directors of Carrier and its affiliates. Carrier shall promptly provide any such required Identification Information to U.S. Bank.

18. **FORCE MAJEURE AND EXCUSABLE DELAY.**

18.1 Except for any duty arising under the Agreement to make payments, neither party is responsible for delays or failures in performance resulting from acts of God, acts of civil or military authority, fire, flood, strikes, war, epidemics, pandemics, shortage of power, telecommunications or Internet service interruptions or other acts or causes reasonably beyond the control of that party. The party suffering the force majeure event will (i) implement its applicable disaster recovery plan to the extent appropriate and practicable; (ii) give the other party prompt notice of the occurrence of a force majeure event; (iii) use diligent efforts to re-commence performance as promptly as commercially practicable pursuant to its disaster recovery plan; and (iv) provide periodic updates to the other party regarding its efforts to re-commence performance until performance has re-commenced in accordance with the Agreement.

18.2 Either party may terminate the Agreement upon written notice to the other, if the non-terminating party is unable to perform a material portion of its obligations as a direct result of a force majeure event described in the immediately preceding paragraph for more than 30 consecutive days. Delay in either party's performance is excused to the extent its performance is delayed solely due to an act or omission of the other party.

19. **PRIOR AGREEMENT.** Upon the Effective Date any prior agreement for the same products and services will be automatically terminated, provided, however, that any payment obligations under the prior agreement shall survive.

20. **CHANGE IN TERMS OF THE AGREEMENT.** U.S. Bank may change the terms and conditions of this Agreement at any time upon written notice to Carrier. If permitted by applicable law, the changes will apply to existing balances as well as future transactions. If Carrier refuses to accept the changes, Carrier must notify U.S. Bank in writing within 30 days from the date of the notice that it refuses to accept the changes and elects to terminate this Agreement. Should Carrier terminate this Agreement pursuant to this section, all amounts due to U.S. Bank will immediately become due and payable by Carrier to U.S. Bank, according to the terms of this Agreement.

21. **INTERPRETATION.** The parties expressly agree this Agreement will not be construed more strongly against the drafting party. This Agreement constitutes the entire agreement between the parties concerning the matters addressed in this Agreement, and cancels and supersedes any prior agreements, undertakings, declarations or representations, written or verbal, in respect thereof. Headings are inserted for convenience of reference only and do not affect the construction or interpretation of this Agreement.

22. **SEVERABILITY.** If any clause, provision or section of this Agreement, or any covenant, stipulation, obligation, agreement, act or action, or part, assumed, entered into or taken under this Agreement is for any reason held to be illegal, invalid or inoperable, such illegality, invalidity or inoperability will not affect the remainder of the Agreement.

23. **NO WAIVER.** No failure or delay by either party to exercise any right, power or privilege provided under this Agreement or by applicable law will operate as a waiver thereof; nor will any single or partial exercise of any such right, power, or privilege preclude any other or future exercise thereof of the exercise of any other right, power or privilege.

24. **RELATIONSHIP.** The relationship between the parties is that of independent contractors. Nothing contained in this Agreement shall be construed as creating an agency, partnership, joint venture, or other form of joint enterprise,

employment or fiduciary relationship between the parties, and neither party shall have authority to contract for or bind the other party in any manner whatsoever. U.S. Bank shall not be deemed to be an agent, broker or other representative of Carrier or any Shipper.

25. **RELATIONSHIP BETWEEN U.S. BANK AND THIRD PARTY SERVICE PROVIDERS.** U.S. Bank may enter into agreements with third parties for the purpose of marketing and advertising U.S. Bank's products and services and providing other services to U.S. Bank. U.S. Bank may compensate the third parties based on revenue generated instead of a flat fee for such services. The products or services provided to Carrier pursuant to this Agreement may include products or services subject to such compensation paid to third parties.

26. **DELEGATION.** U.S. Bank may delegate duties herein to one or more third parties without Carrier approval or consent so long as U.S. Bank remains responsible for the conduct of and payment to such third parties.

27. **NO THIRD-PARTY BENEFICIARIES OR CLAIMS.** Except as stated in this Agreement, and with reference to any successors or assigns, any services provided under this Agreement are for the sole and exclusive benefit of Carrier, if any, and nothing in this Agreement will be deemed to create any third party beneficiary rights in any person or entity not party to this Agreement.

28. **LEGAL COMPLIANCE.** Carrier is solely responsible for its compliance with the terms of this Agreement, all applicable laws, rules, and regulations governing the provision of goods and/or services. Carrier is also solely responsible to consignors, consignees, its agents, governmental agencies or any other persons or entities seeking to enforce such laws, rules, or regulations. U.S. Bank is solely responsible for its compliance with the terms of this Agreement and all applicable laws, rules, and regulations governing banking services. If one party alleges the other party violated such laws, rules, or regulations the alleged violating party shall indemnify and hold the other party harmless against any liability, claims, damages, losses, costs, expenses (including reasonable attorney fees) or arising out of any alleged or actual act or omission of the alleged violating party or its Representatives.

29. **CUMULATIVE REMEDIES.** Except as expressly provided elsewhere in this Agreement, each party's rights and remedies under this Agreement are cumulative and in addition to, not exclusive of or in substitution for, any rights or remedies otherwise available to that party.

30. **JURY TRIAL WAIVER. THE parties waive all rights to trial by jury in any proceeding relating to this Agreement.**

31. **INCORPORATION.** The following are incorporated into the Agreement by reference as if set out at length:
    - **31.1** U.S. Bank Freight Payment Service for Carriers Application; and
    - **31.2** Schedule 1 – Program Fees.

AUTHORIZATION AND EXECUTION.

This Agreement may be executed and delivered electronically, and fully executed electronic versions of this Agreement, or reproductions thereof, will be deemed to be original counterparts. The signer represents and warrants that (i) he or she is authorized by an applicable bylaw, article or other corporate authority to enter into all transactions contemplated by this Agreement, and (ii) the signatures appearing on all supporting documents of authority are authentic.

Signed this_____Day of_____20
(day) (month) (year)

_____
(Legal Name of Carrier)

_____
(Signature of Authorized Signer)

_____
(Printed Name of Authorized Signer)

_____
(Printed Title of Authorized Signer)

Schedule 1 – Program Fees

1. DISCOUNT FEE.

Carrier is charged a fee (the "Discount Fee") for each Accelerated Payment. Payment of such Discount Fee is made through a deduction from the amount remitted to Carrier. The Discount Fee is calculated as percentage of the face value of the invoice approved for payment. The amount of the Discount Fee is calculated using a base rate identified in the table below ("Base Rate") based upon the Shipper's service model (either Advanced Model or Tier One Model) and is adjusted upwards as described in 2(A), 2(B) and 2(C) below.

	Advanced Model
Base Rate	1%

2. ADJUSTMENTS TO THE DISCOUNT FEE.

U.S. Bank may adjust the Discount Fee under any or each of the following conditions.

A. Prime Rate Adjustments.

(i) The Discount Fee may be adjusted by U.S. Bank without notice to Carrier based on the Wall Street Journal Prime Rate on the first business day of each month if such rate exceeds 6% for Advanced Model Shippers or 3% for Tier One Model Shippers (each rate the "**Floor Rate**").

(ii) For every 0.25% band that the Wall Street Journal Prime Rate exceeds the applicable Floor Rate, the Discount Fee will increase by two and one-half basis points. Illustrated below is the total Discount Fee composed of the Base Rate plus the adjustment based upon the Prime Rate.

***The Wall Street Journal* Prime Rate**	**Advanced Model**
<6.00%	1.00%
6.00% – 6.24%	1.025%
6.25% – 6.49%	1.05%
6.50% – 6.74%	1.075%
6.75% – 6.99%	1.10%

The Prime Rate and applicable adjustments to the Discount Fee go higher with each 0.25% band with no maximum.

B. Adjustments based on Shipper/Carrier Agreement Payment Terms.

If the Shipper/Carrier Agreement payment terms on a transaction under the Advance Model provide for payment greater than 30 days, the Discount Fee for such transaction will be adjusted upwards an additional percentage as set forth in the table below to account for the extended terms and cost of funds.

Transaction Agreement Payment Terms Number of Days	**Increase for Advanced Model**
Up to and including 30 Days	0.00%
31 – 45 Days	0.25%
46 – 60 Days	0.50%
61 – 75 Days	0.75%
76 – 90 Days	1.00%

C. Adjustments based upon Carrier Exemption of Certain Shippers.

Carrier agrees to process all payment requests for Platform-capable Shippers through the Program. However, if Carrier elects, and U.S. Bank permits, to have the transactions with one or more Shippers processing on the Platform exempt from the Program, then U.S. Bank reserves the right to increase the Discount Fee by up to one hundred basis points (1%) for all other transactions submitted and paid to Carrier through the Program.

3. ACCESS FEES.

TABLE C		
Description	**Unit of Measure**	**Fee**
base transaction fee	each approved payment	$0.25
freight analytics workbench	monthly, per user	custom
data storage fees (on line storage) transaction data for 25 months		included
images for 6 months		included
non-compliant transaction data [1]	per shipment	$0.25
specific funds transfer [2]	per approved payment	actual cost
remittance account administration[3]	per remittance account modification	$25.00
declined transaction [4]	per item	$30.00
custom services [5]	per hour + expenses	$150.00

1 U.S. Bank does not make use of Value Added Networks ("VANs") for receiving data from or delivering data to Carriers. If Carrier elects to deliver data to or receive data from the Platform via VAN, Carrier will be billed by VAN for both originator and receiver charges.

2 If Carrier requests use of a specific funds transfer mechanism that is not one of U.S. Bank's standard global funds transfer mechanisms, such as a SWIFT wire, Carrier shall reimburse U.S. Bank for the actual cost of these funds transfers.

3 U.S. Bank will charge a remittance account administration fee each time Carrier requests a change to the Agreement for the purpose of ongoing service and support such as changes to remittance account information, or to add or change Standard Carrier Alpha Codes ("SCAC").

4 U.S. Bank will charge Carrier or affiliate a declined transaction fee if U.S. Bank is unable to process a transaction as a result of Carrier providing an invalid or closed remittance account.

5 U.S. Bank will assess custom services fees for custom services outside the scope of standard set up. Such services may include but shall not be limited to: data mapping beyond the appropriate ANSI X12 version 4010 interchange specification, Carrier-specific Platform training, writing reports, or consulting services. U.S. Bank will provide Carrier a written estimate of such custom service fee prior to providing any custom services.